(NOT FOR THE PRESS)
(FOR DEPARTMENTAL USE ONLY)

Department of State NO. 15

PRESS AND RADIO NEWS CONFERENCE, WEDNESDAY, DECEMBER 1, 1954
3:00 P.M. E.S.T

SECRETARY DULLES: I have here a statement which I will read. I think perhaps--have copies been distributed?

MR. WHITE: They will be right after you have given it.

SECRETARY DULLES: (Reading Press Release No. 681, dated Dec. 1, 1954.)

This statement is being issued simultaneously at Taipei.

Q Mr. Secretary, do you intend to release the text of the treaty itself? Do I understand from the statement that the text is in fact complete?

A The text is practically complete and probably will be available for release within the next day or two, but it is not ready for release today.

Q When will the treaty be signed, Mr. Secretary?

A Well, I hope that it can be signed within the next two or three days. There are technical problems involved in conforming texts in English and Chinese, questions of plenipotentiary powers, and the like, but I hope that those matters can be disposed of so that the treaty can be signed within the next two or three days.

Q In Washington, Mr. Secretary?

A Probably here in Washington. The Chinese Foreign Minister is in this country, George Yeh, attending the United Nations, and has been taking part in these negotiations, and presumably the treaty will be signed by him and me within the next few days.

Q Will that require Senate ratification?

A It will.

Q It will go up at the next session?

A It will go up at the next session.

The treaties on Southeast Asia and the German ones have already been sent up by the President. But there will not be an opportunity, I think, for actual hearings on this treaty or perhaps on the German treaty until Congress reassembles. In any event the hearings that are held at this stage are only of a preliminary character, because the new Congress will require the report and recommendation of its own Committee. You see, the Foreign Relations Committee will be somewhat altered in membership, and, therefore, it will have to deal with the matter afresh, after Congress meets.

The hearing which we had on the Southeast Asia treaty will probably advance that somewhat, because perhaps the new members will be satisfied by reading the records of the hearings, and it may shorten the proceedings because we have had that hearing.

Q Mr. Secretary, what is the position of the coastal islands under this treaty? What is the effect of the treaty on the coastal islands?

A The position of the coastal islands remains precisely the same after the treaty as before it.

Q You said, I believe, that the treaty would cover other territories on agreement. Is there any intention now to negotiate any such additional agreement?

A No. If there were, we would have included it in this negotiation.

Q Well, Mr. Secretary, was that section written to cover the problem of the coastal islands?

A No. If I get your question correctly,--which section do you refer to?

Q Well, the one that has to do with agreement by parties. A. The provision is comparable to the provision in the Korean treaty. Where there is a Government which we recognize and which claims rightful sovereignty over more territory than it actually controls, there we adopted the practice of providing by the treaty that it can be extended to other territory, and in the Korean treaty we provide that initially it only covers the area which is south of the armistice line, but that it can be extended to other territory at a later date. The provision is / comparable in this respect with regard to the Republic of China. That has reference not only to these offshore islands but possibly to other territory which might come under the effective control of the Republic of China.

Q What is the legal position of the coastal islands now, Mr. Dulles, because it is different, isn't it from that of Formosa and the Pescadores?

A The legal position is different as I think I pointed out in my last press conference, by virtue of the fact that technical sovereignty over Formosa and the Pescadores has never been settled./ That is because the Japanese Peace Treaty merely involves a renunciation by Japan of its right and title to these islands. But the future title is not determined by the Japanese Peace Treaty nor is it determined by the Peace Treaty which was concluded between the Republic of China and Japan. Therefore, the juridical status of these

islands, Formosa and the Pescadores, is different from the juridical status of the offshore islands which have always been Chinese territory.

Q Mr. Secretary, does this treaty recognize on our behalf the claim of the Government of Chiang Kai-Shek to be sovereign over the Mainland of China?

A It does not deal specifically with that matter one way or another.

Q Do we currently recognize that claim?

A We recognize the Republic of China as the only lawful Government of China, just as we recognize, and the United Nations recognizes, the Government of the Republic of Korea as the only lawful Government in Korea. We recognize the Government of the Federal Republic of Germany as the only lawful Government of Germany. Our position is similar in those respects.

Q Well, Mr. Secretary, in that case, under this extension provision, suppose Chiang's forces did make a successful landing and controlled some territory on the Chinese mainland, presumably this treaty would be extended to cover that?

A Not automatically. It could be extended by a fresh agreement.

Q Mr. Secretary, once when you came back from a trip someplace and you were asked about the offshore islands, someone suggested in a question that there was a certain amount of confusion about the United States policy toward those--

A Yes.

Q And I think you said that you intended to keep it that way. Is that policy continuing now?

A The position on the offshore islands is unaffected by this treaty. Their status is neither promoted by the treaty

nor is it demoted by the treaty. As I have said several times, the injunction to our armed forces is to defend Formosa and the Pescadores. Now, whether or not in any particular case the defense of these offshore islands by reason of the nature of those islands or the nature of the attack against them is such that it is deemed part of the defense of Formosa, that would be a matter which on the first instance at least the military people would advise, and the President would probably make the final decision.

Q Well, then, sir, how did this treaty change the status quo?

A How does it change the status quo?

Q Yes.

A Because it puts Formosa and the Pescadores in precisely the same category, as far as their treaty relationship to the United States is concerned, as the Republic of Korea, Japan, the Philippines, Australia, and New Zealand. It makes it clear beyond a peradventure of a doubt as far as we are concerned that Formosa and the Pescadores are not on the bargain counter for international trading. If any people have felt, because Formosa was the only portion of the so-called offshore island chain which was not covered by treaty, that that omission indicated that perhaps we were willing to make some deal which might return Formosa to Communist China, or something of that sort, this makes it perfectly clear that those islands are not for trade or bargain or anything else. This makes it clear that they are tied by treaty to the United States the same way, as I say, that these other areas, such as Korea and Japan that we have our security treaties with. We will have a series of security treaties which covers the entire arc that runs beginning with northern Japan down through Korea, and

our position in the Ryukyus under the Japanese Peace Treaty, and Formosa and the Pescadores. In addition we have the treaty with the Philippines, we have a treaty with Australia and New Zealand, and we have the negotiated treaty, subject to ratification, with portions of Southeast Asia. They are all now in a similar status as far as their security relationship to the United States is concerned.

Q Mr. Secretary, would you say the purpose of the treaty is more diplomatic than military?

A It has a diplomatic purpose, which I have outlined, and which is very considerable. From a purely military standpoint, it changes the situation in this respect, perhaps, that the authority of the President to use there the armed services of the United States, which originally derive from the Korean war, may be tending to become obsolete from the lapse and passage of time, and the conclusion of the armistice in Korea.

This gives the Congress of the United States, through the Senate, an opportunity to indicate that it shares the view that this area is important from the standpoint of the peace and security of the United States. In that respect it clarifies the position from the standpoint of defense, from the standpoint of internal constitutional considerations.

Q Mr. Secretary, in your Chicago speech the other night, you said, and I quote: "Therefore our first duty is to exhaust peaceful means of sustaining our international right and those of our citizens rather than now resorting to war action such as a naval and air blockade of Red China." Did you by the use of the words "first duty" and the word "now" mean to leave the inference that a naval blocade might be considered later?

A That is certainly a possibility, yes.

Q Mr. Secretary, the failure to cover these offshore islands in this treaty, doesn't that imply that we are prepared to make some deal on them possibly?

A A deal on what?

Q On these offshore islands, as to their status?

A Well, I am not quite sure--you say "we" are prepared to make a deal with them?

Q Well, I gathered from what you said that we specifically mentioned Formosa and the Pescadores so that everybody would know that they are not to attack those, but by omitting the offshore islands, aren't we inferring that we might be prepared to make a deal on them, whomever they might belong to?

A We do not feel in any position to make a deal about the offshore islands because we have no interest in the offshore islands of a legal character certainly, whereas we do have a certain interest in Formosa and the Pescadores.

Q Mr. Secretary, would it be correct to interpret this treaty as recognizing the existence of two Chinas?

A No, because our position is quite clear. As I said in answer to an earlier question, we recognize the Republic of China as the Government of China and the only Government of China. We have no intention of changing our position in that respect, nor would this treaty involve such a change.

Q In the sentence "It will provide for inclusion by agreement of territories under the jurisdiction of the parties"--

A Well, as I say, we have a similar provision in the Korean treaty. We recognize the Republic of Korea as the

only lawful Government of Korea, but we do not extend treaty protection to the areas which are not effectively under its control.

Q Mr. Secretary, now that you have this series of treaties that you have listed, do you have any intention or plan of tying them together in any over-all Asian pact?

A I have often expressed the hope that these treaties could develop in a more comprehensive manner. There are very great difficulties in the way of accomplishing that. The biggest step forward was taken at Manila by the Southeast Asian treaty, where a group of eight countries came together. Otherwise it has seemed impractical to operate except on a bilateral basis, except in the case of Australia and New Zealand, which is on a trilateral basis. But the differences between the different areas are so considerable and the lack of homogeneity is such that it is not easy to bring them together. We can bring them together with us, but it is much harder to bring them together as between themselves. There are very considerable differences, as you know, which exist as between Korea and Japan, and between certain other treaty countries that we have relations with and the Republic of China, so that it is hard to tie it all together at the present time. All I can say is that we have that as a goal and I think that we are going steadily in that direction.

Q Mr. Secretary, to go back to an earlier answer that you gave, could you say under what changed conditions we might consider a blockade, then, of Red China?

A I said in my speech in Chicago that we think it our duty to exhaust all methods short of warlike action in an effort to sustain the rights of our nation and of our citizens. Now, if those methods fail, then we would have to reconsider the situation. Personally, I have a good deal of confidence

that those methods will not fail, but it is not possible to predict with any certainty.

(Continued on page B-1.)

ECM

Q Sir, when you talk about providing for the inclusion of other territories, if those were included by agreement, would another ratification by the Senate be necessary?

A That would have to be determined when we take the matter up before the Senate Foreign Relations Committee as to whether they care to leave that to the discretion of the Executive or whether they would want to have the matter brought back to them. In the case of the North Atlantic Treaty, as you know, it was understood and agreed at the time the ratification of that treaty took place that if the area was enlarged the enlargement would be brought back to the Senate for its action. That is why we are now bringing to the Senate the matter of enlarging the North Atlantic Treaty area by the inclusion of the West German Republic. Whether the Foreign Relations Committee will want to have this handled in that way or not I cannot say at the present time.

Q Mr. Secretary, in your note to the Russians over the surveillance of shipping in the Formosa Strait, I believe there was a phrase about the use of the Seventh Fleet to bring stability to the area. Would it be fair to infer that this treaty also is designed to bring further stability to this area?

A I hope that that will be the result. I think that many people have had a question, including the Chinese Communists, as to whether we were really serious about the defense of Formosa. I think it now takes it out of the realm of speculation, and I hope out of the area of probing, and will tend, I think, to stabilize conditions there. Certainly that is our hope.

Q Mr. Secretary, when you refer to peaceful methods I assume you include the various machinery possible in the United Nations. Do you intend to take the issue of the imprisoned fliers there?

A We are giving very serious consideration to that

and I have already discussed it with certain other members of the United Nations in an exploratory way.

Q Mr. Secretary, would the blockade be taken up through the United Nations, if taken up?

A The United Nations Charter contains provisions that under certain circumstances the Security Council can ask for a blockade of a recalcitrant nation. That is a possibility. Of course that possibility is considerably dimmed by the fact that the Soviet Union sits on the Security Council and it would be my guess, at least, that it would veto such a proposal.

Q Mr. Secretary, is there any understanding in connection with this treaty that the Chinese Nationalists before attacking the mainland must consult with us and act only by agreement with us?

A We expect that there will be worked out practical arrangements so that neither will take action in this area which would jeopardize the other and that we would in general act in an agreed pattern of conduct. Having undertaken to defend the islands we would not expect, nor would the Chinese Nationalists expect, to act rashly in a way to jeopardize the islands. We anticipate that under the operative clauses of the treaty there will be a good deal of consultation and agreement as to just how the situation is handled.

I might say I have just had a few minutes ago a letter from the Generalissimo. I might read it.

"The successful conclusion of the negotiations for the treaty of mutual security marks another forward step in our joint efforts to strengthen the common cause of our two countries against Communist aggression. A necessary link in the chain of Far Eastern defense has now been forged. Please accept my felicitations for your new contribution to world security." Signed, Chiang Kai-shek.

Q Mr. Secretary, the treaty itself would not require this consultation, would it?

A The treaty makes provision for consultation.

Q Is it mandatory that there be consultation under the treaty before any action is taken?

A Yes.

Q What is the difference between having this treaty with Formosa and having Formosa included in the Southeast Asian Treaty?

A Well, from the standpoint of the United States there is no particular difference. It was not practical to bring about actually the inclusion of this area in the Southeast Asian Treaty area because of the fact that some of the parties to that treaty were not prepared to take that step. But the legal situation created is substantially the same, as far as the United States is concerned.

Q Mr. Secretary, you referred to the possibility of a naval blockade after peaceful methods have been exhausted. Could you tell us how serious that possibility is?

A I don't think I could say how serious the possibility is. I merely wanted to make clear in the speech that I made at Chicago night before last that while we were loyally going to try, in accordance with our Charter obligations, to settle this dispute by peaceful and nonviolent means, that if those efforts fail, and we don't get adequate cooperation from other members of the United Nations, then we would feel disposed to re-examine the whole situation without commitment as to what we might do. I wanted to negative the idea that we were precipitately going to rush into warlike action. On the other hand, I did not want to close any doors against possible future developments. I don't anticipate that matters will reach a point where that would be deemed appropriate national conduct. But, on the

other hand, one can never tell and I did not want to slam any doors unnecessarily.

Q Mr. Secretary, does the treaty signed by Formosa provide or envisage any change in our military relationship, any expansion of MAAG there, or any military base rights on Formosa?

A It will provide that we can by mutual agreement have base rights on Formosa. The provision in that respect will be similar to that in the Korean Treaty.

Q How does this treaty define the security areas?

A How does the treaty define it? It defines it, generally speaking, in a way that is mentioned in this statement I made here.

Q Would an attack on Nationalist Chinese ships be considered an attack on China the same as in the North Atlantic Treaty?

A That is not provided in the treaty. The treaty in that respect is, as I say, quite similar to the treaties that have already been made in that area. It is quite like the Korean Treaty. There is no specific reference, as far as I now recall, to an attack upon ships.

Q Or upon aircraft?

A Or upon aircraft.

Q Mr. Secretary, will you tell us a little of the background of the relationship you have had with Congress in the negotiation of this treaty?

A We have been in close touch with the Far Eastern Subcommitee of the Foreign Relations Committee with respect to the negotiations from the beginning. They are familiar with the proposed text of the treaty and have taken an active part in giving advice with reference to the negotiations.

Q Mr. Secretary, does this treaty mean that if Communist China attacks Formosa the attack will not only be repelled but the United States will then be at war with Communist China, and will counterattack on the mainland?

A That would be a probable result. I have made clear a good many times, including my talk night before last, that we believe that if there is an attack that there must be a certain liberty, by mobile forces, to retaliate at the places and means of our choosing. That principle we have enunciated with reference to our various treaties, We did in connection with the Southeast Asia Treaty. That is a general principle which is applicable to our policy and tactics at the present time.

Q Mr. Secretary, you said a moment ago that you had been in preliminary contact with some members of the United Nations on the 13 persons in prison in China. Could you indicate in this respect, or in any other way, the peaceful means that checks with your speech?

A I would rather not speculate about that because at the present time, at least, the means we have in mind might involve other countries. We do not directly have access, of course, to the Chinese Communists and I would prefer not to bring in a third country.

Q Mr. Secretary, going back to the question before last on the mobile forces, does that mean it can be interpreted to mean that the probability is that there will not be another Manchurian sanctuary such as we had in the Korean war?

A I think that is highly probable.

Q Mr. Secretary, I don't think I made my question clear earlier. Does this mean that if the Chinese Communists attack Formosa then, as a result of the operation of this treaty, the United States will be at war with Communist China,

not merely a question of attacking but we will be in a state of war with Communist China?

A Well, if you are asking a question of international law, whether it would technically be a state of war, that is a very difficult question to answer because generally speaking a state of war, as known by international law, only exists between two governments which recognize each other. There is some question from the purely technical standpoint, I am advised by our legal department, as to whether fighting between a government and a nonrecognized regime is or is not technically a state of war. I don't know whether that is the question you wanted to raise or not.

Q It wasn't the technical point. I was thinking, for example, whether Congress would have to declare war in fulfillment of this treaty.

A Well, that would depend upon the circumstances of the case. In the case of all of these treaties that we make there is the constitutional question which has often been debated as to whether the treaty itself gives the President authority without coming back again to Congress or whether he has to come back to Congress. My own view has been that each case has to be judged upon its own facts. These treaties, and the same is approximately true of the North Atlantic Treaty, it is true of all of the Pacific treaties, involves a finding -- which is made not only by the Executive but by the Congress through the body which deals constitutionally with treaties that become the supreme law of the land, -- that the area is so important from the standpoint of the peace and security of the United States that attack upon it would be dangerous to our peace and security. If our own peace and security is endangered the President has a constitutional power, I believe, to act. On the other hand, unless the danger is so imminent and so

great that he has to act quickly before Congress can be consulted I wouldexpect that in the normal course of events he would ask for the concurrence of the Congress. I believe that under certain circumstances he could act without awaiting the Congressional approval other than is / incident to the congressional declaration that the area is so important to the United States that an attack upon it would endanger our own peace and security.

Q But, Mr. Secretary, aside from technicalities, if you mean if Red China would attack Formosa we would then attack Red China?

A We would take retaliatory action. Now the scope of that I would not want to foresee. As I said in my talk the other night, that retaliatory action is not necessarily general war. It does not mean every local attack becomes a general war with atomic bombs being dropped all over the map. It is a retaliation of sufficient severity to make it clear that the aggressor cannot gain by his attack more than he loses. I think that is the important principle to establish. It is the same principle that we have in our own community life. We don't have a death sentence for every crime.

We try to fit the penalty to the crime, and that would mean that a retaliatory action would presumably be limited in scope with regard to the gravity of the offense.

Q Mr. Secretary, I am not clear, quite, on this point. The treaty does not require Nationalist China to get our approval before they attack the mainland, but had they promised they won't without our approval?

A The treaty provides for consultation about these matters. We anticipate that out of those consultations will come a set of working rules. What those are I cannot say at

the present time, but there has been, and still is, such a close, practical working relationship between our two governments that I do not anticipate difficulty in arriving at some working arrangement in these matters.

(The conference was ended at 3:40 p.m., the transcript completed at 4:55 p.m.)

HCG